

Calendar Lines 4-5**Case Name:** *Edward Charles Jenkins v. Kristina Litovchenko et al.***Case No.:** 24CV431808

This is a personal injury action in which plaintiff Edward Charles Jenkins alleges that defendant Kristina Litovchenko was driving her car while distracted and then collided with his parked car. Jenkins also alleges that Litovchenko's passenger, defendant Artem Morozov, "provided false and misleading statements to (AAA) [sic] auto claims specialist" regarding the accident "in order to escape liability." Jenkins, who is self-represented, has filed a handwritten form complaint (Judicial Council Form PLD-PI-001), but instead of using either the typical "Motor Vehicle" or "General Negligence" attachments with the form complaint, he has used "Intentional Tort" attachments to allege only "Intentional Torts" against each of the defendants.

Defendants have filed a demurrer and motion to strike the complaint. Notice is proper, but Jenkins has not filed any opposition to the demurrer and motion.

Defendants' demurrer argues that the complaint fails to state a cause of action under Code of Civil Procedure section 430.10, subdivision (e), although their supporting memorandum inexplicably describes the causes of action in the complaint as *punitive damages* causes of action rather than *intentional tort* causes of action. Their motion to strike repeats the same argument without material variation: that Jenkins has failed to support any prayer for punitive damages. Despite the odd way in which defendants have presented these issues—they should have filed a demurrer that focuses solely on the sufficiency of the intentional tort causes of action, and a motion to strike that focuses solely on the propriety of punitive damages—the court ultimately concludes that the demurrer should be sustained because the complaint fails to set forth any cognizable causes of action for "intentional tort." The allegations against Litovchenko consist solely of non-intentional torts: her distracted driving ("while texting . . . [p]laying music and taking her eyes off the road") and "reckless" driving ("ignoring the speed limit"); they do not allege any intentional tort on her part. The allegations against Morozov focus solely on his "false and misleading" statements to an insurance claims specialist after the accident had already occurred—this, too, does not sufficiently set forth a cause of action for an intentional tort against Jenkins.

Accordingly, the court SUSTAINS the demurrer to both causes of action, with 20 days' leave to amend. If Jenkins chooses to amend, he must present sufficient factual allegations regarding a cognizable intentional tort, or alternatively, he must set forth sufficient factual allegations using one of the other potentially applicable attachments (e.g., "Motor Vehicle").

Because the court finds that Jenkins has not adequately alleged any intentional tort, the court agrees with defendants that the complaint does not set forth an adequate basis for punitive damages. Nevertheless, because the court is already sustaining the demurrer to the causes of action, the court DENIES the motion to strike as moot.

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Calendar Line 9

Case Name: *California Plus Engineering, Inc. v. County of Santa Clara*

Case No.: 21CV376991

This is the earliest of five pending cases in this court involving the same construction project. Plaintiff California Plus Engineering, Inc. (“CPE”) was the general contractor on the project and has sued the owner, defendant County of Santa Clara (the “County”), for payment of a portion of the \$25 million contract price. After this case was filed in 2021, four subcontractors sued CPE and/or the County in four separate actions for payments on the project. (Case Nos. 22CV393704, 22CV396635, 22CV403492, and 23CV412765.)⁵ CPE now moves to consolidate the five cases for all purposes, including trial. According to CPE, the four subcontractors have also stipulated to consolidation. The County, by contrast, states that it is willing to consolidate the cases “for the limited purposes of discovery and mediation,” but it opposes a consolidation for trial. (Opposition, p. 2:6-8.)⁶

The court grants the motion to consolidate for all purposes, including trial. First, these cases indisputably involve common questions of law and fact, given that they arise out of the same construction project, raise overlapping issues of liability, and involve many of the same parties and witnesses. Consolidation for all purposes would serve judicial economy and would allow the parties to adjudicate their claims and defenses in a single case rather than multiple cases. Second, the cases are still in the midst of discovery, with no depositions having yet been taken, and no trial date having been set in any of the cases.

Third, the court finds the County’s arguments against consolidation to be singularly weak:

- The County argues without citing any comparative evidence that the present lawsuit (No. 21CV376991) is “more complex” than the subcontractor lawsuits. Even if this were true, the County fails to explain how it would be adversely affected by combining the cases—if anything, the subcontractors should be the parties who take issue with the additional complexity caused by consolidation, but they have all stipulated to consolidation.
- The County also identifies other issues (e.g., the government claim presentation requirement) that are unique to this case. Again, the County fails to articulate how the need to adjudicate those issues would have any adverse impact on the County, as opposed to the subcontractors.
- The County argues that the resolution of its disputes with CPE will have no bearing on the subcontractors’ claims against CPE and the County in their cases (Opposition, p. 5:4-7 & p. 5:15-17), but the County once again fails to cite any evidence whatsoever to support this proposition. How does the County even know that there is no overlap between the cases? The argument is entirely conclusory and appears to be lacking in foundation.

⁵ The County is a named defendant in two out of four of these subcontractor suits.

⁶ The court has no idea what it means to consolidate a case “for mediation.” Parties are always free to mediate multiple cases regardless of whether they are consolidated, and so this appears to be a meaningless concession.